

Defendant failed to demonstrate any specific facts constituting excusable neglect. *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410. Simply denying service—when service is documented by a registered professional—is insufficient. Furthermore, Defendant’s six-month delay in responding to the default papers mailed to her home address is entirely unexplained and does not reflect the exercise of ordinary care.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504604	BONELLO vs CITY OF CORONA	MOTION TO SET ASIDE ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant’s Motion to Set Aside Entry of Default is granted. The clerk’s entry of default against the City of Corona (City) dated June 3, 2026, is hereby vacated. The City is ordered to file and serve its responsive pleading to the Third Amended Petition (TAP) within 20 days of this order.

Order to show cause is set for 8/31/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of defendant on complaint pursuant to CRC 3.110(g) as to Nicholas Bonello.

Under C.C.P. § 473(d), the court has power to set aside a judgment that is void as a matter of law. (C.C.P. § 473(d).) A judgment may be void as a matter of law for many reasons, including lack of, or improper service of, the summons. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (internal citations omitted). Compliance with statutory procedures for service and the established limits of a clerk’s ministerial authority are essential to the validity of a default entry. *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848 explains, the clerk “has no duty and no authority himself to make a determination whether the answer to the original complaint might stand as an answer to the amended complaint”; the clerk’s function is to determine whether proof of service exists and whether a response “has been filed within the time allowed by law.” *Id.* at p. 862.

The City correctly contends that the clerk’s entry of default was void because the City had already made multiple general appearances in this action. Pursuant to Code of Civil Procedure § 1014, the filing of a demurrer constitutes a general appearance as a matter of law. Generally, a general appearance precludes the entry of default, even if a defendant fails to timely respond to a later iteration of a pleading. As established in *Stevens v. Torregano* (1961) 192 Cal.App.2d 105, a default is void and properly set aside where a valid general appearance is already on file. The clerk acts ministerially and lacks the authority to determine the legal sufficiency of existing appearances or to disregard an appearing party’s right to notice.

The only exception to the rule protecting appearing parties from default is where a plaintiff makes a "material amendment" to the complaint that opens the default by increasing the defendant's exposure. Code Civ. Proc. § 585, subd. (a)-(c); *Contract Engineers, Inc. v. California-Doran Heat Treating Co.* (1968) 258 Cal.App.2d 546, 549. An amendment is material if it subjects the defendant to increased damages. Here, the TAP did not increase

the City's exposure; rather, the scope of potential relief was limited by this Court's prior rulings on demurrers. Consequently, the City's existing general appearances remained effective to prevent the entry of default.

Petitioner opposes the motion by arguing that an amended pleading supersedes prior pleadings for all purposes and that the City's previous demurrers were "spent." Petitioner's reliance on *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848 as support for the validity of the default is unavailing and misplaced. As noted in the City's reply, *Bristol* is consistent with the principle that defaults may be set aside where a prior appearance sufficed to join issue.

Furthermore, Petitioner's argument that the TAP rendered the City's prior appearances a nullity is misplaced. The California Supreme Court in *Gray v. Hall* (1928) 203 Cal. 306 explicitly rejected the notion that a default may be taken for failure to answer an amended complaint when a previous answer or plea remains on file that sufficiently sets forth the defense. Because the City had appeared and its jurisdictional defenses remained applicable, the clerk was without authority to enter the default.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602881	FRANKLIN vs OROZCO	DEMURRER ON COMPLAINT

Tentative Ruling: Hearing is continued to 9/14/26.

CCP § 430.41 and § 435.5 require a meet and confer process via phone or in person before filing a demurrer or motion to strike five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Defendant states that she sent an email to Plaintiff's counsel on 6/15/26 requesting to confer regarding filing a demurrer on the 1st, 4th, 5th, and 6th Causes of action, and subsequently asked for a response. Defendant states she did not receive a reply. (Howe Decl. ¶¶ 3-4). This is insufficient to satisfy the requirement of CCP § 430.41(a).

Defendant is ordered to meet and confer with Plaintiff by telephone for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the subject pleadings. Plaintiff shall provide legal support for his position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendant shall, 10 days before the continued hearing date set forth above, do one of the following:

- (1) Vacate the hearing on the demurrer;
- (2) File with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading before the date set forth above; or